

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: September 17, 2026

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1.	U.S. Technical Consultants, Inc. v. Cutter AVIATION 25-1530391	Defendant Cutter Aviation, Inc.'s ("Defendant") motion for attorney fees and costs against plaintiff U.S. Technical Consultants, Inc. ("Plaintiff") is GRANTED. The attorney fee request comes from an underlying motion to quash service of summons wherein counsel for Plaintiff used what are

		commonly identified as “AI hallucinations” as citations and legal arguments. Defendant was successful on that motion and the case was dismissed. (ROA 48.) The court also noted the AI hallucinations and issued monetary sanctions against Plaintiff’s counsel in the sum of \$950 payable to the court. Defendant now seeks attorney fees it claims were incurred for time expended on the AI hallucination issue, which Plaintiff’s counsel agreed to at the hearing upon an agreement on the amount of fees, and costs as the prevailing party. Of the arguments Defendant made in support of attorney fees, only those under Civ. Proc. Code § 128.5 have merit. <i>Civ. Code § 1717</i> and <i>Civ. Proc. Code § 1032</i> are not availing as no contract with attorney fees language was provided. Under <i>Civ. Proc. Code § 128.5</i>, reasonable expenses, including attorney fees incurred by a party, can be awarded for actions or tactics made in bad faith or which are frivolous. (subd. (a).) The definition of bad faith includes a lack of diligence or slacking off. (BAD FAITH, Black's Law Dictionary (12th ed. 2024).) The court finds failure to discover AI hallucinations included in a brief filed with the court is sufficient for bad faith. Additionally, including arguments which are completely without merit in the pleading, as they are AI hallucinations, qualifies as “frivolous.” As such, an award of attorney fees under <i>Civ. Proc. Code § 128.5</i> is GRANTED. The court has reviewed the billing entries provided by Defendant and finds the reasonable sum related to AI hallucinations to be \$4,110. As most of the issues in the reply brief and those presented at hearing were related to the quash arguments and not the AI hallucination issues, the court in its discretion will not award the “mixed” billing. The court will also award \$2,415 Defendant contends it incurred on the present motion. Finally, as Defendant was the prevailing party in this action, Defendant is awarded its \$545.58 in costs. (<i>Civ. Proc. Code §§ 1032 and 1033.5; Shisler v. Sanfer Sports Cars, Inc.</i> (2008) 167 Cal. App. 4th 1, 6-7.) The combined \$6,525 in attorney fees is awarded in favor of Defendant and against Plaintiff and its counsel of record. The award of \$545.58 in costs is awarded in favor of Defendant and against Plaintiff alone. <i>Defendant to give notice.</i>
2.	Arman v. Director of the Department of Motor Vehicles 26-1587263	The hearing on the Petition for Alternative Writ of Mandate, etc., filed on 7/30/26 by Petitioner Kevin Arman, is CONTINUED to October 22, 2026 at 1:30 p.m. in this Department. Petitioner has failed to demonstrate that the Petition itself, along with the 8/4/26 Order setting the hearing date for the merits of the